

21CHCV00794 21CHCV00794

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-09-02

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF47%2C09%2F02%2F2026

Source SHA-256: 123c5f0c87c751c23831e3706a09711231b6ca7b559151e0dedd16fd9cc55a53

Case Number: 21CHCV00794 Hearing Date: September 2, 2026 Dept: F47

Dept. F47

Date: 9/2/26

Case #21CHCV00794

MOTION TO

DISMISS

Motion filed on 7/22/26.

MOVING PARTY: Defendant Morgan Gallacher, Inc. (Doe 12)

RESPONDING PARTY: Plaintiff Estate of Rosa Pleitez, by
and through her husband, Rigoberto Pleitez

NOTICE: ok

RELIEF REQUESTED: An order dismissing Plaintiff Estate
of Rosa Pleitez, by and through her husband, Rigoberto Pleitez's Fourth Amended
Complaint due to Plaintiff's unreasonable and unjustified delay in service of
process pursuant to CCP 583.250, 583.410 and 583.420.

RULING: The motion is denied.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of Plaintiff Estate of Rosa

Pleitez, by and through her husband, Rigoberto Pleitez's claim that from 10/13/19 through at least 9/21/20, Decedent Rosa Pleitez (Decedent) was exposed to chemicals and caustic products produced, manufactured, distributed and/or sold by Defendant Miles Chemical Company, Inc. (Miles Chemical), Macdermid Enthone, Inc. (Macdermid) and others while employed as a janitor for Carbonite Industries in Riverside, California. It is alleged that Decedent developed catastrophic interstitial lung disease with major injury and disability that affected her ability to work and support herself and her family and ultimately, was a substantial factor in causing her death on or about 3/26/22.

On 10/8/21, Plaintiffs Rosa Pleitez and Rigoberto Pleitez filed the original complaint in this action asserting causes of action against certain named defendants and Does 1-200 for: (1) Strict Liability – Design Defect, (2) Strict Liability – Failure to Warn, (3) Negligence, (4) Breach of Implied Warranty and (5) Loss of Consortium.

As against Doe 13, the complaint alleged that “unknown chemicals and caustic products sold by DOES 1 through 200 contain recognized contaminants and caustic substances which are scientifically known to cause and/or contribute to the development of interstitial lung disease and directly caused and/or contributed to the development of Plaintiff's interstitial lung disease.” (Complaint ¶¶5, 20, 42-43). On 5/24/23, following Decedent's death, the

Estate of Rosa Pleitez, by and through her husband, Rigoberto Pleitez (Plaintiff) substituted in for Decedent in the First Amended Complaint (FAC). A new cause of action for wrongful death was added in the First Amended Complaint and the breach of implied warranty and loss of consortium causes of action were eliminated. The claims for strict liability – design defect, strict liability – failure to warn and negligence were realleged against Does 1-200 under the 2nd cause of action titled survival action in the First Amended Complaint.

On 11/12/25, Plaintiff filed the operative Fourth Amended Complaint (4AC) alleging causes of action for negligence for wrongful death, strict products liability and survival action.

On 1/6/26, Plaintiff filed a Doe amendment naming Morgan Gallacher Inc. (Morgan Gallacher) in place of Doe 12. The basis of the allegations against Morgan Gallacher as Doe 12 remain unchanged in the Fourth Amended Complaint. (See Complaint ¶¶ 18, 20, 38, 48, 53; 4AC ¶¶6, 24).

Morgan Gallacher was served with the Fourth Amended

Complaint on 1/22/26. (See Proof of Service filed 1/26/26). On 3/20/26, Morgan Gallacher answered the Fourth Amended Complaint.

On 7/22/26, Morgan Gallacher filed and served the instant motion seeking an order dismissing Plaintiff's Fourth Amended Complaint due to Plaintiff's unreasonable and unjustified delay in service of process pursuant to CCP 583.250, 583.410 and 583.420. Plaintiff has not opposed or otherwise responded to the motion.

ANALYSIS

Due to its general appearance in this action (by filing an answer on 3/20/26), Morgan Gallacher cannot move for mandatory dismissal based on Plaintiff's failure to serve the summons on it within 3 years after commencing the action against it. See CCP 583.210(a); CCP 583.220. Therefore, Morgan Gallacher's citation to CCP 583.250 regarding mandatory dismissal is without merit. (See Motion, p.1:28, p.2:5-7, p.5:20-23).

Morgan Gallacher also moves for discretionary dismissal pursuant to CCP 583.410(a) and 583.420(a)(1). (See Motion, p.4:25, p.5:19-20, p.6:4-5).

CRC 3.1342(a) provides:

"A party seeking dismissal of a case under Code of Civil Procedure 583.410-583.430 must serve and file a notice of motion at least 45 days before the date set for hearing of the motion. The party may, with the memorandum, serve and file a declaration stating facts in support of the motion. The filing of the notice of motion must not preclude the opposing party from further prosecution of the case to bring it to trial."

(emphasis added)

Here, the instant motion was served and filed on 7/22/26 which is only 42 days before the 9/2/26 hearing date. Notably, Morgan Gallacher cites to CRC 3.1342(e) in the motion but failed to timely file and serve the motion pursuant to CRC

3.1342(a). (See Motion, p.8:18).

Based on Morgan Gallacher's failure to timely serve and file the instant motion, the Court finds that Plaintiff had no obligation to respond to the motion.

CONCLUSION

The motion is denied.